

26STCV17220 26STCV17220

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Case Number: 26STCV17220 Hearing Date: September 21, 2026 Dept: 406

665-673 MONTEREY PASS

LLC,

Plaintiff,

v.

BEN AND AMY, LLC, et

al.,

Defendants.

Case No.: 26STCV17220

Hearing Date: September 21, 2026

[TENTATIVE]

order RE:

defendants' demurrer to complaint

BACKGROUND

On May 29, 2026, Plaintiff 665-675

Monterey Pass LLC filed this action for breach of contract against Defendants

Ben and Amy, LLC; Ben Park; and Amy Park. The dispute stems from unpaid rent.

Plaintiff sues all three Defendants for breach of the lease and additionally

sues the individuals Ben Park and Amy Park for breach of guaranty.

On August 12, 2026, Defendants filed the instant demurrer to the complaint. Plaintiff filed an opposition on September 8, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)

Here, Defendants appear to have abandoned the meet and confer process, as their counsel promised to follow up with Plaintiff upon performing additional research, but never did. (See Kuehl Decl.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41(a)(4).) Therefore, the Court proceeds on the merits.

DISCUSSION

I.

Breach of Lease

To establish breach of contract, a plaintiff must show: (1) the contract existed, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Here, the complaint alleges that

Plaintiff and the three defendants entered into a written lease. (Compl. ¶ 9.)

Plaintiff additionally entered into a guaranty with individual defendants Ben

and Amy Park. (Id., ¶ 19.) Defendants allegedly failed to pay rent and

other amounts due under the lease. (Id., ¶ 20.) Plaintiff allegedly

performed its obligations under the lease. (Id., ¶ 32.) Plaintiff

allegedly suffered damages of at least \$300,000 consisting of unpaid rent, late

charges, recovery costs, restoration expenses, etc. (Id., ¶ 36.) These

facts sufficiently establish a breach of contract.

Defendants argue that "Plaintiff

fails to identify which specific defendants this cause of action is pelad [sic]

against." (Dem. 5:11-12.) However, the complaint clearly asserts a breach by

all three defendants. Moreover, the lease attached to the complaint indicates

that all three defendants are parties to the lease. (Compl, Ex. A.) Thus, the

first cause of action has been adequately pled against all three defendants.

II.

Breach of Guaranty

The second cause of action is

sufficiently pled for the same reasons discussed above. Defendants argue that

the claim is uncertain because "the guaranty that Plaintiff attaches to the

complaint and was incorporated by reference does not show that Defendant BEN

PARK or Defendant AMY PARK signed the guaranty in their individual capacity."

(Dem. 3:25-28.) According to Defendants, "the signature block of the guaranty

shows that Defendant BEN PARK and Defendant AMY PARK actually signed the

guaranty merely as an 'CEO' and 'COO' of the entity." (Ibid.)

However, the allegations and the

incorporated exhibit sufficiently establish that the individuals Ben and Amy

Park are proper defendants. The complaint alleges that Ben and Amy Park entered

into a personal guaranty. (Compl. ¶ 19.) The guaranty attached to the complaint

identifies Ben and Amy Park individually as the guarantors. (Id., Ex. B.) The fact that the signature page of the guaranty identifies the individuals' corporate titles does not mean they signed in that capacity. It is a question of fact in what capacity Ben and Amy Park signed the guaranty. The complaint sufficiently states a cause of action against Ben and Amy Park.

CONCLUSION

Defendants' demurrer is OVERRULED.